

Kunwar Pal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 October 2012 · Writ-C No. 54998 of 2012 · **Writ dismissed; relegated to clause 6.5 bill complaint.**

HEADNOTE

A writ to restrain electricity recovery without notice is not maintainable where the consumer's grievance is an electricity bill: the statutory complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 must be pursued.

FACTUAL SUMMARY

Kunwar Pal sought a mandamus restraining the State and the electricity corporation from acting against him without notice or a recovery certificate. His case was that a tube-well connection had been sanctioned but never energized, yet a bill had been raised and recovery issued. After an earlier listing for instructions, the Division Bench heard counsel for the petitioner and the corporation and disposed of the writ on maintainability.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-complaint-statutory-remedy

HOLDING

A consumer aggrieved by an electricity bill must file a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005; a writ seeking to restrain recovery without notice cannot be entertained when that statutory remedy is available.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE SANCTIONED TUBE-WELL LINE WAS ENERGIZED AND WHETHER THE BILL AND RECOVERY WERE DUE

Dismissed solely for the clause 6.5 remedy; the petitioner's case on energisation and recovery was not examined. ¶ 1